

THIS SAFT AND THE CERTIFICATE TOKEN MAY BE SUBJECT TO ANY OR ALL OF THE RESTRICTIVE LEGENDS SET FORTH AT THE END OF THIS SAFT. PLEASE CHECK THE “LEGENDS” METADATA FIELD OF THE CERTIFICATE TOKEN FOR THE CURRENTLY APPLICABLE RESTRICTIVE LEGENDS.

SAFT (Simple Agreement for Future Tokens)

THIS CERTIFIES THAT in exchange for the payment by the Investor of the Purchase Amount pursuant to a Cyber-Securities Purchase Agreement entered into by the Investor and the Company (the “**Purchase Agreement**”), the Company issues to the Investor the right to certain Protocol Tokens to be issued by the Token Issuer, on the terms set forth in this Simple Agreement for Future Tokens (this “**SAFT**”).

This SAFT is a certificated security (as defined in the Uniform Commercial Code (UCC) § 8-102(a)(4)) represented by a non-fungible blockchain token issued by the Company (the “**Certificate Token**”). The Certificate Token is intended to function as a security certificate (as defined in UCC §8-102(a)(16)) representing this SAFT.

The Certificate Token was issued by the Company’s instance of the MetaLeX certificated security token protocol at <https://github.com/MetaLex-Tech/cybercorps-contracts/>, including an instance of `CyberCertPrinter.sol` (such instance, the “**CyberCertPrinter Smart Contract**”). Specific details of this SAFT are stored in a mapping of the `CertificateDetails` struct to the `tokenId` of the Certificate Token in the memory of the CyberCertPrinter Smart Contract (the “**Mapping**”), including the following details providing the meanings of certain capitalized terms herein:

“**Company**” means the entity identified by the values of the `cyberCORPName`, `cyberCORPJurisdiction`, and `cyberCORPType` variables stored in the Mapping.

“**Company Address**” means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `companyDetails` variable stored in the Mapping.

“**Governing Jurisdiction**” means the jurisdiction identified by the value of the `governingJurisdiction` variable stored in the `legalDetails` variable stored in the Mapping.

“**Investor**” means the individual or entity identified by the value of the `investorName` variable stored in the Mapping, and, if an entity, the values of the `investorType` and `investorJurisdiction` variables stored in the Mapping.

“**Investor Address**” means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `investorDetails` variable stored in the Mapping.

“**Protocol Valuation Cap**” means an amount of U.S. dollars equal to the value of the `issuerUSDValuationAtTimeofInvestment` variable stored in the Mapping.

“**Purchase Amount**” means an amount of U.S. dollars equal to the value of the `investmentAmountUSD` variable stored in the Mapping.

“**Unlocking Cliff Percentage**” means the percentage of the Investor Tokens that unlock (i.e., cease to be Transfer-restricted under Section 3) at the Unlocking Cliff, identified by the value of the `unlockingCliffPercentage` variable stored in the Mapping.

“**Unlocking Cliff Period**” means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time after which some number of Tokens first become unlocked (i.e., cease to be Transfer-restricted under Section 3), identified by the value of the `unlockingCliffPeriod` variable stored in the Mapping.

“**Unlocking Interval Type**” means the type of time interval defining each Token unlocking event (i.e., event of ceasing to be Transfer-restricted under Section 3) within the Unlocking Period, identified by the value of the

UnlockingIntervalType variable stored in the Mapping, which value may be **secondly** (i.e., each second), **hourly**, **daily**, **monthly**, or **blockly** (i.e., a Token unlock occurs once in each block of the applicable blockchain system).

“**Unlocking Period**” means the number of time units of the Unlocking Interval Type from and after the Unlocking Start Time required for all of the Investor Tokens to become fully unlocked (i.e., ceasing to be Transfer-restricted under Section 3), identified by the value of the **unlockingPeriod** variable stored in the Mapping.

“**Unlocking Start Time**” means the starting time from which the unlock period of the Tokens (i.e., the period of time over which Transfer restrictions under Section 3 lapse) is calculated, identified by the value of the **unlockStartTimeType** variable stored in the Mapping (**agreementExecutionTime** for the time that this SAFT is entered into, **tgeTime** for the time of the Token Launch Event, or **setTime** for a particular specified time) and the value of the **unlockStartTime** variable stored in the Mapping.

See Section 2 for certain additional defined terms.

The Company has certain administrative controls over the Certificate Token, including controls over the transferability of the Certificate Token and the power to set the status of the Certificate Token to “void” for any reason or no reason, in its sole discretion. In the event that the Company sets the status of the Certificate Token to “void” the Company will either issue the Investor a new Certificate Token or a paper certificate representing this SAFT, or will provide for representation of this SAFT in book-entry form on the books and records of the Company. In the event of a persistent “contentious hardfork” (as commonly understood in the blockchain industry) of any of the relevant blockchain systems that results in copies of the Certificate Token on each such blockchain system, the Company shall determine which copy of the Certificate Token is canonical in its sole and absolute discretion, and the Company may void, and shall not be required to honor any claims on, or afford any rights to, the copy of the Certificate Token determined by the Company to be non-canonical. In the event that the blockchain system determined by the Company to be canonical following a contentious hardfork itself subsequently undergoes its own contentious hardfork, this provision shall likewise apply to such contentious hardfork, *mutatis mutandis*.

1. Events

1.1 Token Launch Event.

- (a) If there is a Token Launch Event before the termination of this SAFT, this SAFT will automatically convert into the right of the Investor to receive from the Company or another Token Issuer, upon the terms and subject to the conditions set forth in this SAFT, a number of Protocol Tokens equal to the greater of: (i) the Purchase Amount divided by the lowest price per Protocol Token sold by the Company or another Token Issuer in a priced financing round prior to or in connection with the Token Launch Event; or (ii) the Purchase Amount divided by the SAFT Price. The Protocol Tokens to be received by the Investor hereunder are referred to herein as the “**Investor Tokens**”.
- (b) The Investor acknowledges and agrees that the use cases and other properties of the Protocol Tokens are still under development; accordingly, conversion of this instrument into Protocol Tokens may (at the election of the Company or another Token Issuer) require the Investor’s execution of certain additional agreements, which may include governance terms and conditions, transfer restrictions, use commitments and other matters, in each case, as reasonably determined by the Company in good faith to be necessary

- 1.2 Dissolution Event. If there is a Dissolution Event before the termination of this instrument, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1.3 below) to receive, out of the cash and other assets that are proceeds from the Dissolution Event and legally available for distribution, the Purchase Amount, due and payable to the Investor immediately prior to the consummation of the Dissolution Event. If immediately prior to the consummation of the Dissolution Event, the assets of the Company that remain legally available for distribution to the Investor and all holders of all other SAFTs (the “**Dissolving Investors**”), as determined in good faith by the Company’s board of directors, are insufficient to permit the payment to the Dissolving Investors of their respective purchase amounts under their respective SAFTs, then the remaining assets

of the Company legally available for distribution will be distributed in U.S. Dollars or dollar-equivalent stablecoins in accordance with Section 1.3 hereof.

- 1.3 Liquidation Priority. In a Dissolution Event, the Investor's right to receive its Purchase Amount shall be:
- (a) on par with payment of outstanding indebtedness and creditor claims, (including contractual claims for payment or other SAFTs); and
 - (b) senior to payments for the capital stock, membership interests, and other equity securities of the Company, as applicable.

If the applicable proceeds are insufficient to permit full payments to the Investor and such other holders of SAFTs and creditors of the Company, the applicable proceeds will be distributed pro rata to the Investor and the holders of such other SAFTs and/or other creditors in proportion to the full payments that would otherwise be due.

- 1.4 Termination. This SAFT will automatically terminate (without relieving any party of any obligations arising from a prior breach of or non-compliance with this instrument) immediately following the earliest to occur of (i) the completion of delivery of all Investor Tokens; or (ii) the payment, or setting aside for payment, of amounts due the Investor pursuant to Section 1.2. Terms of this SAFT which are by their nature intended to survive termination (including without limitation the Company's representations pursuant to Section 4) shall remain in force after termination.
- 1.5 Conditions. As a condition precedent to the issuance to the Investor of any Tokens pursuant to Section 1.1 or payments pursuant to Section 1.2, the representations and warranties of the Investor set forth in Section 5 must be true and correct in all material respects as of immediately prior to such issuance or payment, as the case may be. The Investor shall notify the Company in writing as promptly as practicable (and in any event prior to any such issuance) if the Investor becomes aware that any of the representations and warranties in Section 5 become inaccurate during the term of this SAFT.

2. Definitions

- 2.1 "**Affiliate**" means, with respect to any specified individual or entity, any other individual or entity that, directly or indirectly, controls, is controlled by, or is under common control with such individual or entity, including without limitation any general partner, managing member, officer, Founder, director or trustee of such individual or entity.
- 2.2 "**Allocable Protocol Tokens**" means the total maximum number of Protocol Tokens that have been, are or will be sold, used, transferred, awarded, granted distributed, created, generated, minted or otherwise come into existence, whether temporarily or permanently, by, at the direction of, on behalf of or with the affirmative participation, consent or approval of the Company or a Token Issuer. Without limiting the generality of the foregoing, "Allocable Protocol Tokens" shall exclude Protocol Tokens that meet any one or more of the following conditions:
- (a) such Protocol Tokens are Representational Protocol Tokens, are Collectible NFTs, were created for testing purposes only, or at the time of their creation could not reasonably be expected to have or acquire material value;
 - (b) such Protocol Tokens are in excess of the Initial Protocol Tokens and were created primarily as a result of an irregular state change, reorganization, fork, liveness failure, consensus failure or hack, attack or exploit of a Protocol Instance or blockchain system on which a Protocol Instance is deployed, provided that the foregoing was not initiated by, at the direction of, on behalf of or with the affirmative participation, consent or approval of the Company;
 - (c) such Protocol Tokens are primarily associated with a Third-Party Protocol Instance;

- (d) such Protocol Tokens are in excess of the Initial Protocol Tokens and were minted by, at the direction of or with the approval of a DAO comprising holders of Protocol Tokens (and not at the direction of the Company, Company Representatives, or a Token Issuer); or
- (e) it is beyond the commercially reasonable ability of the Company or a Token Issuer to stop such Protocol Tokens from being created or to obtain a portion of such Protocol Tokens which could be distributed to Investor.

For the avoidance of doubt, the Allocable Protocol Tokens shall initially be the maximum number of Protocol Tokens that, as of the Token Launch Event, exist or are expressly permitted by the applicable Protocol Instance to come into existence (the “**Initial Protocol Tokens**”).

- 2.3 “**Collectible NFTs**” means non-fungible tokens (and all associated metadata) having primarily artistic, souvenir or community-building purposes and not essential to the governance or use of the Protocol.
- 2.4 “**Company Representatives**” means the Company’s investors, stockholders, Founders, employees, officers, directors and advisors or other consultants.
- 2.5 “**Dissolution Event**” means (i) a voluntary termination of operations of the Company, (ii) a general assignment for the benefit of the Company’s creditors or (iii) any other liquidation, dissolution or winding up of the Company, whether voluntary or involuntary.
- 2.6 “**Founder**” means each employee, independent contractor, service provider, director, officer, or holder of equity securities of the Company or Token Issuer who: (a) made material contributions to the Company’s or a Token Issuer’s intellectual property (including business plans or strategies) or material business relationships; (b) receives or is entitled to receive at least five percent of the Allocable Protocol Tokens or 5% of the equity securities of the Company or a Token Issuer; and (c) has been identified as or would otherwise reasonably be considered to be a founder of the Company or a Token Issuer.
- 2.7 “**Insider**” means any current or former investors, stockholders, Founders, employees, officers, directors and advisors or other consultants of the Company and any Token Issuer (if other than the Company).
- 2.8 “**Majority-in-Interest**” means the investors under SAFTs having the same Protocol Valuation Cap whose SAFTs have a total purchase amount greater than 50% of the aggregate purchase amounts of all of such SAFTs.
- 2.9 “**Protocol**” means
 - (a) any protocol based on or embodying the distinctive ideas or mechanisms proposed or developed by the Company or any Token Issuer; and
 - (b) all protocols, software and technology based on, incorporating or derived in whole or in part from any protocol, software or technology described in the preceding clause ‘(a)’; and
 - (c) any blockchain-based network protocol, platform or application (including any blockchain-based network of smart contracts or smart contract participants) created, developed, operated or managed by, or based upon, or incorporating material portions of any intellectual property developed, owned or exclusively licensed by the Company or any Token Issuer.
- 2.10 “**Protocol Instance**” means:
 - (a) any implementation of the Protocol in software (whether in the form of source code, bytecode, machine code or otherwise); or
 - (b) any copy of an implementation referred to in the preceding clause ‘(a)’ that is associated with a unique network address and memory/storage state on a blockchain system or otherwise available for runtime operation on a blockchain system.

- 2.11 ***“Protocol Tokens”*** means all blockchain tokens that (i) would reasonably be expected to have material pecuniary value; and (ii) have or confer or are intended or generally understood to have or to confer any rights, powers or benefits that govern or control, or capture, track or correlate with the value or adoption of, any Protocol or Protocol Instance (other than solely a Third-Party Protocol Instance) or any funding, personnel or resources dedicated or reserved primarily for maintenance, development, marketing, operation or improvement of any Protocol or Protocol Instance (other than solely a Third-Party Protocol Instance) (including any Blockchain Tokens conferring any rights, powers or benefits with respect to a DAO for governing the Protocol or a Protocol Instance (other than a Third-Party Protocol Instance) or any similar entity, fund or set, group or association of persons).
- 2.12 ***“Representational Protocol Tokens”*** means any type of Protocol Token that:
- (a) without reduction or dilution of the value of or economic, governance or other powers and benefits of the type Protocol Tokens issued pursuant to this Agreement, is intrinsically derived from, designed to represent or be convertible with the type of Protocol Tokens issued pursuant to this Agreement;
 - (b) cannot be minted, generated, credited, assigned or otherwise come into existence without staking, converting, depositing, locking, burning or otherwise removing from circulation a proportional amount of the type of Protocol Tokens issued pursuant to this Agreement; and
 - (c) cannot remain in circulation except while the proportional amount referred to in the preceding clause ‘(b)’ remains out of circulation.
- 2.13 ***“SAFT”*** means a Simple Agreement for Future Tokens or other agreement between the Company and an investor providing the investor with the right to receive Protocol Tokens in exchange for a purchase price, in each case, that is entered into prior to the expiration or termination of this instrument.
- 2.14 ***“SAFT Price”*** means the price per Protocol Token equal to the Protocol Valuation Cap divided by the number of Allocable Protocol Tokens as of the time of the Token Launch Event.
- 2.15 ***“Third-Party Protocol Instance”*** means a Protocol Instance that:
- (a) insofar as it differs from other Protocol Instances, was not directly or indirectly developed or deployed by, on behalf of, at the direction of or with the affirmative participation, consent or approval of, or using any resources of, the Company or a Token Issuer; and
 - (b) is not directly or indirectly endorsed or supported by or on behalf of the Company.
- 2.16 ***“Token Launch Event”*** means the time that any Token Issuer first issues any Allocable Protocol Tokens to non-Insiders (other than any other Token Issuer).
- 2.17 ***“Token Issuer(s)”*** means (i) the Company, (ii) the Company’s present and future parent(s), subsidiaries and Affiliates, and their respective successors and assigns, (iii) any foundation, trust or similar entity that (x) has entered or will enter into a services contract, agreement, relationship, understanding or arrangement with the Company or an Affiliate of the Company to develop a blockchain protocol or smart contracts associated with the Tokens or (y) issues, distributes, creates, generates, mints, or produces Protocol Tokens and is related to, or formed by, the Company, or its present or future parent(s) or subsidiaries with respect to software code developed by the Company or any of the Company’s present and future Founders, parents, subsidiaries and Affiliates, and (iv) to the extent issuing Tokens materially related to the Company’s business, any current or future Company Representative or Affiliate thereof.
- 2.18 ***“Transfer”*** means (A) the direct or indirect sale, assignment, delegation, pledge, charge, lending, hypothecation, encumbrance, creation of a swap or other derivative with respect to, or transfer or disposition of this instrument, any Investor Token or any interest, right, claim, obligation or liability under this instrument or with respect to any Investor Token; or (B) the Investor entering into or becoming subject to a contract or agreement, written or oral, that would cause any of the foregoing to occur. Without limiting the generality of the foregoing, ***“Transfer”*** shall include entering into any short position, any “put equivalent position” or “call equivalent position”, option or

contract to sell or purchase, or swap or other arrangement that transfers to another, in whole or in part, any of the economic or other consequences of ownership of any Investor Tokens or this instrument, in each case, whether any such transaction is to be settled by delivery of such Investor Tokens, other virtual currencies or virtual mediums of exchange, in cash, or otherwise. Notwithstanding the foregoing, it shall not be deemed a “*Transfer*” of Investor Tokens for the Investor to stake Investor Tokens for the Investor’s own account in accordance with the mechanisms enabled by the Protocol (if any); *provided, however*, that any use of a staking services provider to assist with the foregoing must comply with all of the following conditions:

- (a) if the service provider will, at any time, have custody over or any power to effect or prevent transactions in any Investor Tokens (e.g., because the service provider holds one or more private keys associated with any public key address(es) of the Investor Tokens or has authority or power to call functions in a “smart contract” in which any Investor Tokens are held), such custody or power must be in the capacity of a fiduciary, trustee, escrow agent or bailment agent for the Investor and not that of a borrower, purchaser or counterparty to a futures or swap arrangement;
- (b) the service provider must be under contract with the Investor to return the Investor Tokens (other than any Investor Tokens lost due to “slashing penalties” incurred by the staking protocol) upon demand (except for any mandatory un-staking delays imposed by the staking protocol); and
- (c) if, pursuant to a “liquid staking” arrangement or otherwise, the service provider provides to or for the Investor or the Investor otherwise creates or receives any tokens, certificates of deposit or other derivatives or instruments representing the staked Investor Tokens, no Transfer is made of such tokens, certificates of deposits or other derivatives or instruments except to the extent that the corresponding Investor Tokens have become unlocked in accordance with the preceding clause ‘(b)’.

3. Lockup.

- 3.1 The Investor Tokens shall be subject to the restrictions on Transfer set forth in this Section 3 (the “*Transfer Restrictions*”). The Investor shall not, without the prior written consent of the Company, Transfer any Investor Token, except to the extent such Investor Token has become unlocked pursuant to Section 3.2 as modified by Section 3.3 and Section 3.4.
- 3.2 Subject to Section 3.3 and Section 3.4, the Investor Tokens shall become Transferable (“*unlock*”) ratably in accordance with the Unlocking Interval Type during the period beginning at the Unlocking Start Time and ending at the end of the Unlocking Period, except that: (a) such ratable unlocking shall be delayed from the Unlocking Start Time until the end of the Unlocking Cliff Period; and (b) the Unlocking Cliff Percentage of the Investor Tokens shall unlock at the end of the Unlocking Cliff Period.
- 3.3 Notwithstanding Section 3.2, but subject to Section 3.4:
 - (a) The Company may (but shall have no obligation to), in whole or in part, waive, shorten or terminate the Unlocking Period, accelerate the unlocking of Investor Tokens or reduce the Transfer restrictions applying during the Unlocking Period, provided that each such waiver, shortening, termination, acceleration or reduction applies on a pro rata, pari passu basis to all holders of SAFTs.
 - (b) The Company may extend the Unlocking Period or the Unlocking Cliff Period, or reduce the Unlocking Cliff Percentage, or modify the Unlocking Interval Type, in each case:
 - (i) (i) to the extent required by applicable law, as determined by the Board of Directors (or equivalent governing authority) of the Company in good faith and on the advice of external legal counsel; or
 - (ii) (ii) as approved by both the Company and the Majority-in-Interest.
- 3.4 Notwithstanding Section 3.2 and Section 3.3: (i) no Transfer Restrictions shall apply to Investor unless all Tokens that are issued (directly or indirectly) to any current or former investors, securities holders, Founders, employees,

officers, directors and advisors and other consultants of the Company and any Token Issuer are subject to the Transfer Restrictions at least as onerous as those applicable to the Investor; (ii) any discretionary waiver or termination of any Transfer restrictions that are approved by the Board of Directors (or equivalent governing authority) of the Company or any Token Issuer with respect to any Insider shall apply to each holder similar SAFTs or other rights to receive Allocable Protocol Tokens from the Company or another Token Issuer, pro rata, based on the number of Allocable Protocol Tokens such holder will be entitled to; and (iii) except to the extent prohibited by applicable law (determined in accordance with clause (a)(i) above), during any period any Investor Tokens are subject to Transfer Restrictions, each such holder may: (A) Transfer any Tokens to any Affiliate of such holder and (B) exercise the voting and other governance rights linked to such Tokens or deploy them towards staking in accordance with the governance and other rules of the Protocol.

- 3.5 If the Company or any Token Issuer determines that it is necessary or desirable to impose programmatic Transfer Restrictions on the Tokens, then the Company and the Majority-in-Interest shall work in good faith to identify a mutually agreed (such agreement not to be unreasonably conditioned, withheld or delayed) smart contract through which the Transfer Restrictions set forth in this Section 3 can be programmatically enforced, provided that such smart contract shall be immutable (or subject to mutual governance by the Company and Majority-in-Interest) and not be controlled by the Company, any Token Issuer or any Affiliate thereof and shall otherwise comply with the terms of this SAFT.
- 3.6 Any attempted or purported Transfer that would breach, violate or fail to comply with this Section 3 shall be null and void *ab initio*. Forfeiture and relinquishment of all Investor Tokens, and rights to Investor Tokens and other rights under this SAFT, shall be deemed liquidated damages for any attempted or actual breach of the Transfer Restrictions, and the Company or any Token Issuer may freeze, refuse to issue, blacklist under the relevant Protocol Instances, or otherwise seek to claim, reclaim, or limit the rights, benefits, or powers with respect to, such Investor Tokens without any consent of the Investor or court order.
- 3.7 For the avoidance of doubt, Tokens purchased after the Token Launch Event or received by Investor as a reward for staking Investor Tokens shall not be subject to the Transfer restrictions described in this Section 3.

4. Company Representations. The Company hereby represents and warrants, to and for the benefit of the Investor, as of the date of this instrument and as of each date on which this instrument is converted, expires or terminates, as applicable, as follows:

- 4.1 The Company is duly formed, validly existing and in good standing under the laws of its jurisdiction of formation, and has the power and authority to own, lease and operate its properties and carry on its business as now conducted.
- 4.2 The execution, delivery and performance by the Company of this instrument is within the power of the Company and has been duly authorized by all necessary actions on the part of the Company (subject to the exceptions set forth in Section 4.4). This SAFT constitutes a legal, valid and binding obligation of the Company, enforceable against the Company in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity. To its knowledge, the Company is not in violation of (i) its current certificate of incorporation and bylaws, memorandum and articles of association, operating agreement or equivalent governing documents; (ii) any material statute, rule or regulation applicable to the Company or (iii) any material debt or contract to which the Company is a party or by which it is bound, where, in each case, such violation or default, individually, or together with all such violations or defaults, could reasonably be expected to have a material adverse effect on the Company.
- 4.3 The performance and consummation of the transactions contemplated by this instrument do not and will not: (i) violate any material judgment, statute, rule or regulation applicable to the Company; (ii) result in the acceleration of any material debt or contract to which the Company is a party or by which it is bound; or (iii) result in the creation or imposition of any lien on any property, asset or revenue of the Company or the suspension, forfeiture, or nonrenewal of any material permit, license or authorization applicable to the Company, its business or operations.

- 4.4 No consents or approvals are required in connection with the performance of this instrument, other than: (i) the Company's board of director, manager or similar entity governance approvals or approvals of holders of equity securities (in each case, as applicable); and (ii) any qualifications or filings under applicable securities laws.
- 4.5 To its knowledge, the Company owns or possesses (or can obtain on commercially reasonable terms) sufficient legal rights to all patents, trademarks, service marks, trade names, copyrights, trade secrets, licenses, information, processes and other intellectual property rights necessary for its business as now conducted and as currently proposed to be conducted, without any conflict with, or infringement of the rights of, others.

5. Investor Representations. Investor hereby represents and warrants, to and for the benefit of the Company, as of the date of this instrument and as of each date on which this instrument is converted, expires or terminates, as applicable, as follows:

- 5.1 The Investor has full legal capacity, power and authority to execute and deliver this instrument and to perform its obligations hereunder. This instrument constitutes valid and binding obligation of the Investor, enforceable in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors' rights generally and general principles of equity.
- 5.2 The Investor is an accredited investor as defined in Rule 501(a) of Regulation D promulgated under the Securities Act of 1933, and all information and certifications set forth in the accredited investor questionnaire provided by the Investor to the Company are accurate and complete. The Investor is purchasing this instrument and acquiring the Protocol Tokens for its own account, not as a nominee or agent, and not with a view to, or for resale of this instrument or the Protocol Tokens in connection with, the distribution thereof, and the Investor has no present intention of selling, granting any participation in, or otherwise distributing any of the foregoing. The Investor has been advised that this instrument is a security and that the offers and sales of this instrument have not been registered under any country's securities laws and, therefore, cannot be resold except in compliance with the applicable country's laws. If the Protocol Tokens or subsequent sales of the Protocol Tokens are deemed to be or to represent securities, then, since the Protocol Tokens have not been registered under any country's securities laws and, the Protocol Tokens will not be permitted to be resold except in compliance with registration or exemption requirements under the applicable securities laws. The Investor understands that this instrument is and any Protocol Tokens may be a "restricted security" under applicable U.S. federal and state securities laws and that, pursuant to these laws, the Investor must hold this instrument (and, if securities laws apply to the Protocol Tokens, the Protocol Tokens) indefinitely unless this instrument or the Protocol Tokens, as the case may be are registered with the Securities and Exchange Commission and qualified by state authorities, or an exemption from such registration and qualification requirements is available. The Investor acknowledges and agrees that the Company has no obligation to register or qualify for resale this instrument (or the Protocol Tokens). The Investor further acknowledges that if an exemption from registration is available, it may be conditioned on various requirements including, but not limited to, the time and manner of sale, the holding period, and on requirements relating to the Company which are outside of the Investor's control, and which the Company is under no obligation and may not be able to satisfy. The restrictions on Transfer described in this [Section 5.2](#) are in addition to, and may last longer than, the Unlocking Period restrictions set forth in [Section 3.1](#). The Investor understands that no public market now exists for this instrument (or the Protocol Tokens), and that the Company has made no assurances that a public market will ever exist for this instrument (or the Protocol Tokens). If the Investor is an entity, the Investor has not been formed for the specific purpose of acquiring this instrument or the Protocol Tokens. Neither the Investor nor, if the Investor is an entity, any of its officers, directors, employees, agents, shareholders or partners has either directly or indirectly, including, through a broker or finder (i) engaged in any general solicitation, or (ii) published any advertisement, in each case, in connection with the offer and sale of this instrument or the Protocol Tokens. If the Investor is not a United States person, the Investor hereby represents that it has satisfied itself as to the full observance of the laws of its jurisdiction in connection with this instrument and the issuance Protocol Tokens hereunder.
- 5.3 If the Investor is an individual, then the Investor resides in the state or province identified in the Investor Address. If the Investor is a partnership, corporation, limited liability company or other entity, then the office or offices of the Investor in which its principal place of business is identified in the Investor Address. All information provided to the Company and/or its third-party designees for purposes of the Company's KYC (Know-Your-Customer) and AML (Anti-Money-Laundering) checks, including its address and social security number or tax ID number,

is accurate and complete. The funds used for the Purchase Amount were not and are not directly or indirectly derived from any activities that contravene any law, rule, regulation or order (including anti-money laundering laws and regulations) applicable to the Investor. None of: (i) the Investor; (ii) any person controlling or controlled by the Investor; (iii) any person having a beneficial interest in the Investor; or (iv) any person for whom the Investor is acting as agent or nominee in connection with this instrument is: (A) a country, territory, entity or individual named on an OFAC list as provided at <http://www.treas.gov/ofac>, or a person or entity prohibited under the OFAC Programs, regardless of whether or not they appear on the OFAC list; or (B) a senior foreign political figure, or any immediate family member or close associate of a senior foreign political figure.

- 5.4 Other than the representations and warranties of the Company expressly set forth in Section 4, neither the Investor nor any of its representatives or affiliates has relied on any statement, information, representation or warranty (including oral statements, due diligence presentations, etc.), or any omission of any statement, information, representation or warranty, made by the Company or any representative of the Company, in determining to enter into or perform this instrument or any of the transactions contemplated by this instrument. The Company is not making and has not made any representation, warranty or other statement intended to be relied upon or to give rise to any claim, obligation or liability based on the accuracy or completeness thereof, other than the representations and warranties of the Company expressly set forth in Section 4.
- 5.5 The Investor understands and agrees that Protocol Tokens have a limited function and purpose and may be difficult to sell or liquidate for money, monetary equivalents or other property and that the Company does not intend to establish or facilitate any secondary market to encourage or ensure any liquidity or other avenue for the disposition of Protocol Tokens. The Investor wishes to acquire and use Protocol Tokens for their intended purposes. The Investor is not seeking to acquire Protocol Tokens for any investment purpose beyond the efforts of the Company to bring about the Token Launch Event. The Investor understands that the uses of Protocol Tokens are still under development by the Company, that the terms and conditions of Protocol Tokens as they relate to the Company and its products, services and protocols are subject to the discretion of the Company and that Protocol Tokens may be governed by terms or service or other contracts and agreements to which the Investor and other Protocol Tokens holders may become subject and which may be subject to change at the discretion of the Company.

6. Miscellaneous

- 6.1 Entire Agreement. This instrument sets forth the entire agreement and understanding of the parties relating to the subject matter herein and supersedes all prior or contemporaneous disclosures, discussions, understandings and agreements, whether oral or written, between them.
- 6.2 Use of Proceeds. The Purchase Amount shall be used to support research, product development, expansion of sales and marketing efforts, working capital and general corporate purposes.
- 6.3 Notices. All notices and other communications given or made pursuant to this instrument shall be in writing and shall be deemed effectively given upon the earlier of actual receipt, or: (i) personal delivery to the party to be notified, (ii) when sent, if sent by electronic mail during normal business hours of the recipient, and if not sent during normal business hours, then on the recipient's next business day, (iii) five days after having been sent by registered or certified mail, return receipt requested, postage prepaid, or (iv) one business day after deposit with a nationally recognized overnight courier, freight prepaid, specifying next business day delivery, with written verification of receipt. All communications shall be sent to the respective parties at: (a) in the case of the Company, the Company Address; and (b) in the case of the Investor, the Investor Address, or to such e-mail address, facsimile number or address as subsequently modified by written notice given in accordance with this Section 6.3.
- 6.4 Assignments. Neither this instrument nor the rights contained herein may be assigned or otherwise Transferred, by operation of law or otherwise, by either party without the prior written consent of the other; *provided, however*, that this instrument and/or the rights contained herein may be assigned without the Company's consent by the Investor: (i) to the Investor's estate, heirs, executors, administrators, guardians and/or successors in the event of Investor's death or disability, or (ii) any other entity who directly or indirectly, controls, is controlled by or is under common control with the Investor, including, without limitation, any general partner, managing member,

officer or director of the Investor, or any venture capital fund now or hereafter existing which is controlled by one or more general partners or managing members of, or shares the same management company with, the Investor, provided, in each case, that each assignee first, as a condition precedent to the effectiveness of such assignment, enters into a joinder agreement, in form and substance reasonably satisfactory to the Company, personally making the representations set forth in [Section 5](#) and agreeing to be bound by this instrument (including the lockup provisions of [Section 3](#)) and any and all documents and agreements described in [Section 1.1\(b\)](#); and *provided, further*, that the Company may assign this instrument in whole, without the consent of the Investor, in connection with a reorganization to change the Company's domicile, or to a parent entity of the Company. Any attempted or purported assignment, conveyance or transfer in breach or violation of this [Section 6.4](#) or any other applicable restriction shall be null and void *ab initio*. Transferability of the Certificate Token requires the prior written consent of the Company, which may be granted by the Company making changes on the applicable blockchain system to enable the Certificate Token to become transferable on such blockchain system. Unless the Certificate Token has been voided, the Investor shall not make any transfer or assignment of this SAFT or any rights under this SAFT without transferring the Certificate Token to the same transferee or assignee. In the case of a transfer or assignment of the SAFT by operation of law or that is otherwise involuntary and does not entail transfer of the Certificate Token, or with respect to which the transferee or assignee does not wish to or cannot accept the Certificate Token, the Investor and the transferee or assignee shall notify the Company as promptly as far as reasonably practicable in advance of (if possible) or (if advance notice is not possible) as promptly as reasonably practicable after such transfer or assignment, and, for the avoidance of doubt, the Company may void the Certificate Token, issue a new Certificate Token, switch this SAFT to book-entry-only, or take any other reasonable good faith action to avoid any duplication of this SAFT and the Certificate Token or any rights hereunder or thereunder and to ensure the accuracy of the books and records of the Company and outstanding Certificate Tokens in light of the transfer or assignment.

- 6.5 Amendments. This instrument is one of a series of similar instruments entered into by the Company from time to time. Any provision of this instrument may be amended, waived or modified by written consent of the Company and either (i) the Investor or (ii) investors representing a Majority-in-Interest; *provided, however* that with respect to clause '(ii)': (A) the Purchase Amount may not be amended, waived or modified in this manner and (B) such amendment, waiver or modification treats all such holders in the same manner as the consenting majority-in-interest. The Investor hereby agrees that, if any amendment, waiver or modification of this instrument is (A) approved by the written consents required for such amendment, waiver or modification, the Investor shall promptly (and in any event within one business day of the Company's written request, accompanied by the relevant written consent of other Investors) execute and deliver to the Company such amendment or a written agreement setting forth such waiver or modification. The Investor hereby constitutes and appoints as the proxies of the Investor, and hereby grants a power of attorney to: (A) the Company, and (B) the President, Chief Executive Officer, or similar executive of the Company, and each of them, with full power and substitution, to execute any amendment, modification or waiver the Investor is required to execute pursuant to this [Section 6.5](#) and fails to deliver within the required period of time. Each of the proxy and power of attorney granted in this [Section 6.5](#) is being given in consideration of the agreements and covenants of the parties in connection with the transactions contemplated by this instrument and, as such, each is coupled with an interest, secures the proprietary interest of such donee and the performance of obligations owed to such donee and shall be irrevocable until this instrument terminates pursuant to its terms or is amended to remove or terminate the proxy and power of attorney. The Investor hereby revokes any and all previous proxies or powers of attorney with respect to the matters contemplated herein that may conflict or be inconsistent with the foregoing provisions and shall not hereafter, until this instrument terminates pursuant to its terms or is amended to remove or terminate the proxy and power of attorney, grant, or purport to grant, any other proxy or power of attorney which may conflict or be inconsistent with the foregoing provisions.
- 6.6 Delays and Omissions. No delay or omission to exercise any right, power, or remedy accruing to any party under this instrument, upon any breach or default of any other party under this instrument, shall impair any such right, power, or remedy of such nonbreaching or non-defaulting party, nor shall it be construed to be a waiver of or acquiescence to any such breach or default, or to any similar breach or default thereafter occurring, nor shall any waiver of any single breach or default be deemed a waiver of any other breach or default theretofore or thereafter occurring.

- 6.7 No Equity Rights. The Investor is not entitled, as a holder of this instrument, to vote on, or receive equity-based rights (including dividend or voting rights), or be deemed the holder of shares of the Company for any purpose, nor will anything contained herein be construed to confer on the Investor, as such, any of the rights of a shareholder of the Company or any right to vote for the election of directors or upon any matter submitted to shareholders at any meeting thereof, or to give or withhold consent to any corporate action or to receive notice of meetings, or to receive subscription rights or otherwise.
- 6.8 Governing Law. All rights and obligations hereunder will be governed by the laws of the Governing Jurisdiction, without regard to the conflicts of law provisions of such jurisdiction.
- 6.9 Remedies Cumulative. All remedies, whether under this instrument or by law or otherwise afforded to any party, shall be cumulative and not alternative.
- 6.10 Severability. In the event any one or more of the provisions of this instrument is for any reason held to be invalid, illegal or unenforceable, in whole or in part or in any respect, or in the event that any one or more of the provisions of this instrument operate or would prospectively operate to invalidate this instrument, then and in any such event, such provision(s) only will be deemed null and void and will not affect any other provision of this instrument and the remaining provisions of this instrument will remain operative and in full force and effect and will not be affected, prejudiced, or disturbed thereby.
- 6.11 Captions. The headings and captions used in this instrument are used only for convenience and are not to be considered in construing or interpreting this instrument.
- 6.12 Signature Counterparts. This SAFT may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including blockchain systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any applicable electronic signature laws.
- 6.13 Decimal Precision and Truncation. All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision (10^{18}). Percentages, multipliers and rates are stored with 4-decimal-place precision (10^4). Precision of mathematic operations will be normalized to 18 decimals of precisions (10^{18}) and any operations exceeding that will be truncated.

RESTRICTIVE LEGENDS

RIA COMPLIANCE LEGEND. THE CERTIFICATE TOKEN MAY NOT BE USED TO EFFECT A TRANSFER OR TO OTHERWISE FACILITATE A CHANGE IN BENEFICIAL OWNERSHIP OF THIS SAFT WITHOUT THE PRIOR CONSENT OF THE COMPANY.

RESTRICTED SECURITIES LEGEND. THIS INSTRUMENT, THE CERTIFICATE TOKEN, AND ANY SECURITIES ISSUABLE PURSUANT HERETO OR THERETO ARE “RESTRICTED SECURITIES” AS DEFINED IN SEC RULE 144.

UNREGISTERED SECURITIES LEGEND. THIS INSTRUMENT, THE CERTIFICATE TOKEN AND ANY SECURITIES ISSUABLE PURSUANT HERETO OR THERETO HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR UNDER THE SECURITIES LAWS OF CERTAIN STATES. THESE SECURITIES MAY NOT BE OFFERED, SOLD OR OTHERWISE TRANSFERRED, PLEDGED OR HYPOTHECATED EXCEPT AS PERMITTED IN THIS SAFT AND UNDER THE SECURITIES ACT AND APPLICABLE STATE SECURITIES LAWS PURSUANT TO AN EFFECTIVE REGISTRATION STATEMENT OR AN EXEMPTION THEREFROM.

CONTENTIOUS HARDFORK LEGEND. IN THE EVENT THAT THE BLOCKCHAIN SYSTEM ON WHICH THE CERTIFICATE TOKEN WAS ORIGINALLY ISSUED UNDERGOES A PERSISTENT “CONTENTIOUS HARDFORK” (AS COMMONLY UNDERSTOOD IN THE BLOCKCHAIN INDUSTRY, RESULTING IN TWO INDEPENDENT BLOCKCHAIN SYSTEMS THAT ARE BOTH REASONABLY EXPECTED TO HAVE INDEPENDENT PERSISTENT COMMERCIAL VALUE), NO COPY OF THE CERTIFICATE TOKEN MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED UNTIL THE COMPANY HAS DETERMINED, IN ITS SOLE AND ABSOLUTE DISCRETION, WHICH BLOCKCHAIN SYSTEM (AND WHICH CERTIFICATE TOKENS) TO TREAT AS CANONICAL, AND THEN ONLY THE CERTIFICATE TOKEN THUS DETERMINED BY THE COMPANY TO BE CANONICAL MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED (TO THE EXTENT OTHERWISE PERMITTED). IN THE EVENT THAT THE BLOCKCHAIN SYSTEM DETERMINED BY THE COMPANY TO BE CANONICAL FOLLOWING A CONTENTIOUS HARDFORK ITSELF SUBSEQUENTLY UNDERGOES ANOTHER CONTENTIOUS HARDFORK, THIS RESTRICTIVE LEGEND SHALL LIKEWISE APPLY TO SUCH OTHER CONTENTIOUS HARDFORK, MUTATIS MUTANDIS.